
ROOFTOP UNIT AND BOILER SERVICE CONTRACT

88 Loudville Road, Easthampton, Massachusetts

This Service Contract (the “Contract”) is made as of **July 1, 2024** (the “Effective Date”) between **Mill River Mechanical Co. LLC**, a Massachusetts limited liability company of 112 Pleasant Street, Easthampton, Massachusetts 01027 (the “Contractor”), and **Whitcomb Regional Charter School**, of 88 Loudville Road, Easthampton, Massachusetts 01027 (the “School”).

1. Term and Renewal

1.1 This Contract begins on July 1, 2024 and continues for a term of two (2) years, expiring on **June 30, 2026**.

1.2 **Renewal.** This Contract does not renew automatically. Renewal requires a written renewal agreement signed by both Parties **at least ninety (90) days before the expiration date**. If no written renewal is executed within that period, this Contract expires on June 30, 2026 and the Contractor is under no continuing obligation to provide the services described below.

1.3 The Contractor will give the School written notice of the approaching expiration not less than one hundred twenty (120) days before the expiration date, so that the School may place the renewal before its board and budget process.

2. Covered Equipment

The equipment covered by this Contract (the “Covered Equipment”) is:

- Six (6) packaged rooftop units serving the classroom wings, gymnasium and administration area, as identified on the equipment schedule maintained by the Contractor.
- Two (2) hot water boilers serving the perimeter heating system, together with their circulators, controls and associated near-boiler piping.

Equipment added to the building after the Effective Date is covered only by written amendment to this Contract.

3. Scope of Services

3.1 **Scheduled Rounds.** During the school year, the Contractor shall perform **biweekly rounds on Tuesdays** covering all Covered Equipment. Each round includes visual inspection, filter and belt checks, condensate and drain checks, economizer and damper operation, control setpoint verification, and a written service ticket left with the School's facilities contact.

3.2 **Filters and Belts.** Filters and belts for the Covered Equipment are included in the monthly fee and will be replaced on the manufacturer's recommended interval or sooner if conditions require.

3.3 **Summer Shutdown.** At the close of each school year the Contractor shall perform a summer shutdown of the boilers and heating system, including draining or isolating as appropriate, lockout of controls, and a written condition report identifying any repairs recommended before the following heating season.

3.4 **Fall Startup.** Before the start of each school year the Contractor shall perform a fall startup of the boilers and heating system, including combustion testing, low-water cutoff testing, safety control verification, circulator and

expansion tank inspection, and confirmation of heat to all zones.

3.5 Service Calls. Unscheduled service calls during normal business hours are included in the monthly fee for the Covered Equipment, up to the diagnostic and minor-repair labor described in Section 5. Parts are billed separately as provided in Section 5.

3.6 Exclusions. This Contract does not include compressor replacement, rooftop unit replacement, boiler sectional or heat exchanger replacement, refrigerant line repairs, controls system replacement, roof or curb work, asbestos or hazardous material handling, or damage caused by fire, flood, freezing, power irregularity, vandalism or misuse.

4. Access and School Calendar

The School shall provide roof and mechanical room access for scheduled rounds, and shall give the Contractor its academic calendar each year so that rounds, shutdown and startup can be scheduled around instruction, testing and building closures. Scheduled rounds falling on a day the building is closed will be performed on the next school day.

5. Fees and Payment

5.1 Monthly Fee. The School shall pay the Contractor **\$2,000.00 per month** for the services described in Section 3, invoiced monthly.

5.2 Payment Terms. The stated payment terms of this Contract are **Net 15** from the invoice date.

5.3 Purchase Order Process. The Parties acknowledge that the School issues a purchase order for each fiscal year and that the Contractor shall reference the applicable purchase order number on every invoice. Invoices submitted without a valid purchase order number may be returned to the Contractor without payment. The Parties further acknowledge that the School's accounts payable department processes approved invoices on a **forty-five (45) day cycle**, and that payment received within that cycle shall not be treated as late for purposes of this Contract notwithstanding the Net 15 terms stated in Section 5.2.

5.4 Work Outside Scope. Work outside the scope of Section 3, and work excluded under Section 3.6, is billed at the following rates:

Item	Rate
Labor — regular hours (Mon–Fri, 7:00 a.m. to 4:00 p.m.)	\$125.00 per hour
Labor — after hours, weekends and holidays	\$185.00 per hour
Parts and materials	Cost plus 15%

The Contractor shall obtain a written authorization or a purchase order from the School's Business Manager before beginning any out-of-scope work, except where immediate work is required to prevent injury or property damage, in which case the Contractor shall notify the School in writing the next business day.

5.5 Fiscal Year Appropriation. The School's obligation to pay amounts falling due in any fiscal year is subject to the appropriation of funds for that year. The School shall notify the Contractor promptly if funds are not appropriated.

6. Insurance and Indemnification

6.1 The Contractor shall maintain commercial general liability insurance with limits of not less than \$2,000,000 per occurrence and in the aggregate, workers' compensation insurance as required by the statutes of the Commonwealth of Massachusetts, and commercial automobile liability coverage. The Contractor shall furnish certificates of insurance to the School annually and shall name the School as an additional insured on the general liability policy.

6.2 The Contractor shall indemnify, defend and hold harmless the School, its board, officers and employees against claims for bodily injury, death or property damage to the extent caused by the negligent acts or omissions of the Contractor, its employees or subcontractors.

6.3 **Background Checks.** The Contractor shall ensure that every employee assigned to the School's premises has completed the criminal offender record information check required of school vendors under Massachusetts law, and shall furnish confirmation on the School's request. Contractor personnel shall sign in at the main office on every visit.

7. Termination

Either Party may terminate this Contract for material breach by giving written notice describing the breach. The receiving Party has thirty (30) days to cure. If the breach is not cured, the Party that gave notice may terminate by a second written notice. On termination or expiration, the School shall pay for all services performed through the effective date.

8. General

The Contractor performs this Contract as an independent contractor. This Contract is governed by the laws of the Commonwealth of Massachusetts. Neither Party may assign this Contract without the other's written consent. This Contract may be amended only in writing signed by both Parties, and is the entire agreement between the Parties concerning its subject matter.

The Parties have executed this Contract as of the Effective Date written above.

CONTRACTOR — MILL RIVER MECHANICAL CO. LLC

Signature

Dana Mercier

Member

Date

July 1, 2024

SCHOOL — WHITCOMB REGIONAL CHARTER SCHOOL

Signature

Paula Rennick

Business Manager

Date

July 1, 2024